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DOD CIVILIAN PERSONNEL MANAGEMENT SYSTEM: ADMINISTRATIVE GRIEVANCE SYSTEM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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Department of Defense Instruction (DoDI) 1400.25-V771_DAFI36-706, *DOD Civilian Personnel Management System Administrative Grievance System,* is supplemented as follows: This supplement applies to all non-bargaining unit employees serviced by the Civilian Personnel Office at Luke Air Force Base (AFB) who are paid from appropriated funds. It does not apply to non-appropriated fund (NAF), Air National Guard (ANG) units, Cyber Excepted Service covered under Title 10 USC or applicants for employment. Luke Air Force Base supplementary content follows "(Added)(LUKEAFB)." Refer recommended changes and questions about this publication to the OPR using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate functional chain of command. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System. The authorities to waive wing, unit, delta or garrison level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number

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SUMMARY OF CHANGES

This publication provides minor revisions to previously published supplement due to the updated parent DODI1400.25V771_DAFI36-706. This publication designates the Deciding Official for Formal Grievances and Higher-Level Review (HLR) and provides specific processing instructions. Updated mandatory statement on page one.

ENCLOSURE 2

j. (1) **(Added)** Where all employees involved in the grievance or having direct interest in the matter being grieved are part of a single sub-unit of a squadron (e.g., section, flight), the Deciding Official for formal grievances is the grievant' s Squadron Commander or designee, unless the grievance involves that individual. In that instance, the grievance will be addressed to the next applicable higher-level individual or office within the organizational chain of the Squadron Commander.

ENCLOSURE 3

g. (1)**(Added)** The aggrieved employee must submit, in writing, the name of his/her representative to the Deciding Official and provide a copy to the Civilian Personnel Section (CPS), **56fss.fsmc.emr@us.af.mil**, for inclusion in the grievance file.

3. PROCESS

a. Problem-Solving Process

(5) (a) **(Added)** In the supervisor's written response, information on how to file a formal grievance and the name and contact information of the appropriate Deciding Official for the formal grievance must be included.

(5) (b) **(Added)** If the supervisor determines the matter is not covered by the grievance process, the supervisor must so inform the employee in writing and advise the employee of the appropriate process, if any, for resolving the problem.

(8) (Added) Any written complaint presented using the informal Problem-Solving Process must be filed through the Civilian personnel Section, **56fss.fsmc.emr@us.af.mil**, but will be addressed to the appropriate supervisor unless that grievance involves that individual. In that instance, the grievance will be addressed to the employee's second level supervisor or designee.

b. Grievance Process

(3) (d)**(Added)** The formal grievance must be filed through the Civilian personnel Section (CPS), **56fss.fsmc.emr@us.af.mil**, but addressed to the employee's Squadron Commander or assigned designee, unless the grievance involves that individual.

(3) (e) **(Added)** The CPS will assist the Deciding Official with the following information:

(3) (e)(i)**(Added)** Determining if the grievance is acceptable under the AGS.

(3) (e)(ii)**(Added)** Determining if the grievance was filed with the appropriate person. If not, the CPS will route the grievance to the correct Deciding Official and notify the grievant in writing of the correction and the date the correct Deciding Official received the grievance.

(3) (e)(iii)**(Added)** Provide both the grievant and the Deciding Official with information on the ADR process to encourage the parties to seek informal resolution on the matter.

(4) (a) **(Added)** The Deciding Official for formal grievances is the employee's Squadron Commander or designee unless the grievance involves that individual. In that instance, the grievance will be addressed to the next applicable higher-level individual or office within the organizational chain of the Deciding Official.

(7) (f) **(Added)** The grievant resigns, retires, or accepts employment outside the Deciding Official's realm of authority, subject to the requirements of Enclosure 3, **paragraph 2**a.1

(9) (a)(i) **(Added)** The CPS may deny the employee's HLR request based on the criteria outlined in **para 9**(a). Decisions to deny the employee's HLR request are final.

(9) (a)(ii)(**Added)** All decisions made by the Deciding Official at the higher level review are final.

JASON M. RUESCHHOFF
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Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 33-322, *Records Management and Information Governance Program*, 21 March 2020

DODI 1400.25V771_DAFI 36-706, *DOD Civilian Personnel Management System Administrative Grievance System*, 14 November 2018

Adopted Forms

DAF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

ADR—Alternative Dispute Resolution

AFB—Air Force Base

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFRIMS—Air Force Records Information Management System

ANG—Air National Guard

CPS—Civilian Personnel Section

DoD—Department of Defense

DoDI—Department of Defense Instruction

EO—Equal Opportunity

HLR—Higher Level Review

OPR—Office of Primary Responsibility

RDS—Records Disposition Schedule